

Amendment No. 1 to HB2038

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1827*

House Bill No. 2038

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 9, Chapter 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Coin" means:

(A) Precious metal fabricated into a product of uniform shape, size, design, content, weight, and purity that is suitable for or customarily used as currency, as a medium of exchange, or as the medium for purchase, sale, storage, transfer, or delivery of precious metal in a retail or wholesale transaction; or

(B) Refined precious metal bullion, stamped or imprinted with its weight and purity and valued primarily based on its metal content and not its form;

(2) "Legal tender" means a recognized medium of exchange for the payment of debts and taxes;

(3) "Person" means an individual; state, local government, political subdivision, or any agent or agency thereof; company; corporation; partnership; firm; trust; organization; or association; and

(4) "Precious metal" means gold and silver.

(b) Precious metal coins are legal tender in this state.

(c) A person shall not compel another person to use or accept precious metal coins as legal tender, unless expressly agreed to or authorized by law or contract.

(d) A department, agency, or other unit of state government shall not accept or make payment in gold or silver coin unless authorized by statute.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.